

5. Excessive or inadequate damages
6. Insufficiency of the evidence to justify the verdict or other decision, or the verdict or other decision is against law.
7. Error in law, occurring at the trial and excepted to by the party making the application.

CCP § 657.

Defendants Notice of Motion identifies three grounds for a new trial; specifically, excessive or inadequate damages, insufficient evidence and an error in law. CCP § 657(5-7). Defendants argue that the Court misinterpreted or misapplied the 1996 Stipulated Judgment and that the prior 1924 and 1935 Decrees provided Defendants with the right to enter Plaintiffs property. Based on that purported right of entry, Defendants contend that it was an error in law to find a trespass. The Court's May 30, 2026, Judgment incorporated a prior ruling on Plaintiffs' Motion for Partial Judgment Notwithstanding the Verdict. That ruling addressed the prior Decrees and Stipulated Judgment and found that the document did not give Defendants the right to construct new irrigation and that Defendants had "no authority to add structures such as log or riffle and they had no authority to enter and damage Plaintiffs' property in whatever way they choose as long as it related to their irrigation." Defendants provided no authority to show that the documentations were misinterpreted by the Court. Accordingly, Defendants have failed to meet their burden to show an error in law. An independent review of the Decrees and Stipulated Judgment also does not show there was any error in law in the Court's prior interpretation. As for the issues of excessive damages or insufficient evidence, Defendants did not address either issue in their memorandum of points and authorities. The Court finds that Defendants have not established an error in law, excessive damages or insufficient evidence that would warrant a new trial.

Sanctions. In their opposition, Plaintiffs request sanctions in the amount of \$3,045 pursuant to CCP § 128.5. Plaintiffs take the position that the sanctions are warranted based on the frivolous nature of the motion. While the Court ultimately disagrees with Defendants' position, there has been an insufficient showing that the motion was frivolous or made in bad faith to warrant sanctions. The request for sanctions is denied.

The motion is **DENIED**. A proposed order was lodged with the Court which will be modified to reflect the denial.

SCHJOTH, ET AL. VS. LYNCH
CASE NUMBER: 25CV-0208162

Tentative Ruling on Order to Show Cause Re: Sanctions: An Order to Show Cause Re: Sanctions issued on April 6, 2026 to Plaintiffs Timothy James Schjoth, Zachary Kirk, and Christopher Schjoth and counsel Law Offices of Willoughby & Associates for failure to timely seek entry of default as required by CRC 3.110(g). "If a responsive pleading is not served within the time limits specified in this rule and no extension of time has been granted, the plaintiff must file a request for entry of default within 10 days after the time for service has elapsed. The court may issue an order to show cause why sanctions should not be imposed if the plaintiff fails to timely file the request for the entry of default." CRC 3.110(g). Proof of Service of Summons was filed on October 14, 2025 reflecting service on Defendant Nicholas David Lynch on October 1, 2025. Default should have been entered over six months ago. Plaintiff did not file a written response.

Without sufficient excuse for the delay, sanctions are imposed in the amount of \$250 against Plaintiff and counsel. The clerk is directed to prepare a separate Order of Sanctions. **An appearance is necessary on today's calendar to explain the delay.**

SHANE HUGHES CONSTRUCTION, INC. VS. BUSH

CASE NUMBER: 23CV-0203722

Tentative Ruling on Motion to Restore Status Quo Ante: Plaintiff Shane Hughes Construction, Inc. moves to stay the matter and return it to the status quo ante as of March 9, 2026. The motion is based on a bankruptcy filing by Defendant Amber Bush. A Notice of Stay of Proceedings (Judicial Council form CM-180) has not been filed. This is a mandatory form. Additionally, the Court has not been provided with any documents related to the bankruptcy case or the bankruptcy case number. While Plaintiff listed Exhibits 1-4 in the moving papers, no exhibits were provided. Without this information, the Court is not able to stay the matter or grant the motion. However, should proper proof be provided, the Court intends to stay the matter as of the date of the bankruptcy filing.

Plaintiff is directed to file a Notice of Stay of Proceedings with a copy of the Notice of Commencement of Case, the bankruptcy petition, or other document showing that the stay is in effect, and showing the court, case number, debtor, and petitioners. Ruling on the motion is **DEFERRED**. The Court intends to rule on the motion when the Notice of Stay of Proceedings has been filed, or on June 15, 2026, whichever is sooner. The matter will be on calendar on **Monday, June 15, 2026 at 9:00 a.m. in Department 63** for status of the case and potential bankruptcy stay. The clerk is directed to vacate the July 6, 2026 review hearing.

WILLIAMS VS. FOUNDATION PHYSICIANS MEDICAL GROUP, ET AL.

CASE NUMBER: 22CV-0201099

Tentative Ruling on Notice of Motion and Motion to Modify Designation of Record Filed by Plaintiff: Defendants, Foundation Physicians Medical Group, Inc., Dignity Health Medical Foundation, Commonspirit Health, and Bradley Walker, seek to modify the designation of record from an appendix to the clerk's transcripts regarding the appeal filed by Plaintiff, Shawni Williams. Plaintiff did not file an opposition.

CRC 8.124 governs the rule regarding the election and use of an appendix in lieu of clerk's transcripts on appeal. CRC 8.124(a)(1) specifically provides,

“Unless the superior court orders otherwise on a motion served and filed within 10 days after the notice of election is served, this rule governs if:

- (A) The appellant elects to use an appendix under this rule in the notice designating the record on appeal under rule 8.121; or
- (B) The respondent serves and files a notice in the superior court electing to use an appendix under this rule within 10 days after the appellant's notice designating the record on appeal is filed and no waiver of the fee for a clerk's transcript is granted to the appellant. If the appellant has a fee waiver, the respondent cannot elect an appendix instead of a clerk's transcript.

Plaintiff filed a Notice of Designation electing to use an appendix on April 3, 2026. The notice was served by electronic service on April 2, 2026. The present motion was filed on April 14, 2026, 12 days after the motion was served. CCP § 1010.6(a)(3) allows electronic service of a document that may be served by mail or fax and provides a two-day extension for any act or response to be made. Here, because the Notice of Designation was served by electronic service, Defendants had 12 days to file the present motion. The motion was timely filed. Plaintiff has not opposed the motion. Defendants have established good cause to support the use of the clerk's transcripts in lieu of an appendix.

The Motion is **GRANTED**. The clerk's transcript shall be provided to the Court of Appeal as record of the documents filed in the superior court pursuant to CRC 8.122. Defendants provided a proposed Order that will be executed by the Court.